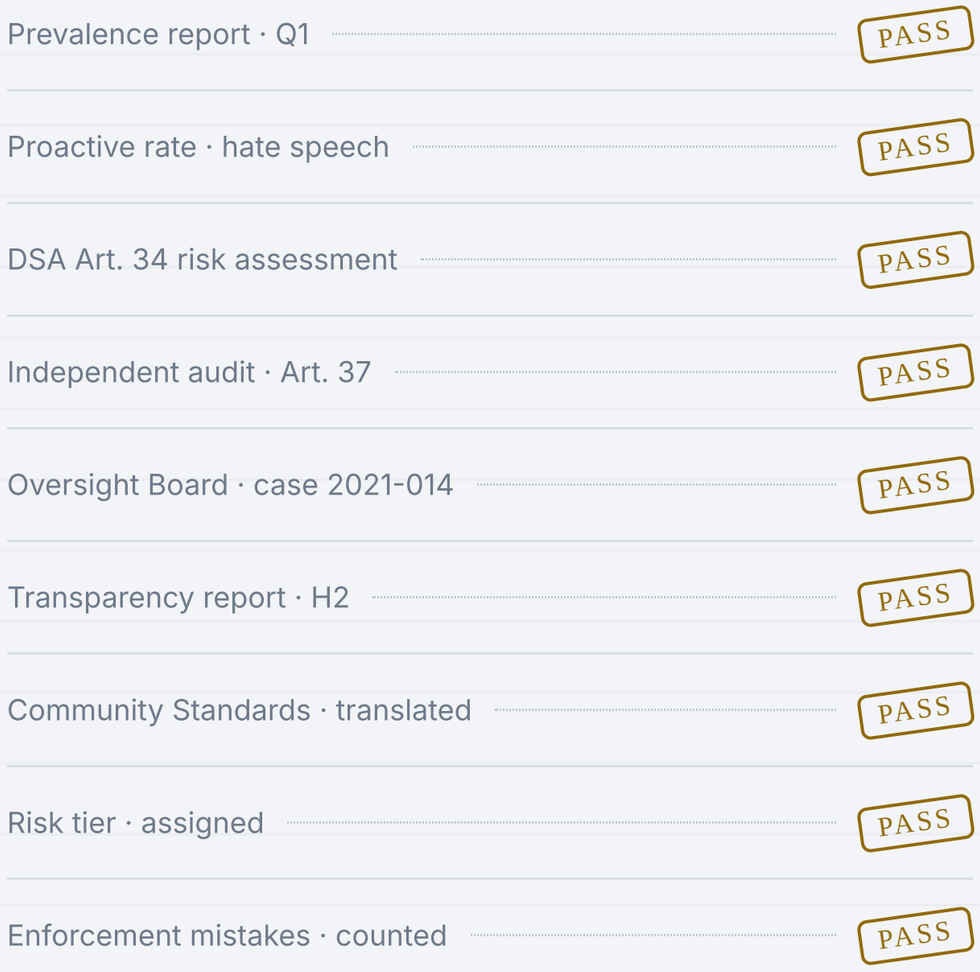
A THEORY OF DEFENSIBILITY FOR AI AUDITS

The Burden of Truth

What an audit can still establish when there is no right answer to check against

Cam Kormylo · Heng Xu · Nicholas Berente
Mendoza College of Business · University of Notre Dame



Meta content moderation, the most audited AI system in the world

1. **Quarterly enforcement metrics**
   Prevalence, proactive rate, and since 2025 a count of "mistakes"

   PASS

2. **Independent audit under the EU Digital Services Act**
   EY, 2024. 54 sub-articles. Over 90% fully compliant. No adverse conclusions.

   PASS

3. **A standing review body**
   The Oversight Board. Twenty-plus members. Binding on individual posts.

   PASS

2015 · Myanmar

Two Burmese-speaking reviewers for a country that ran on Facebook. The UN later said the platform's role bore the hallmarks of genocide.

2020 · Ethiopia

Five years later, with Myanmar as evidence, no hate-speech classifier in Amharic or Oromo as a civil war began.

Meta, "Meta's Progress Implementing the Digital Services Act," Nov 2024 · Reuters, "Why Facebook is losing the war on hate speech in Myanmar," Aug 2018 · Facebook Files (CNN, WSJ), Oct 2021

THE CLAIM

The predominant approach asks whether the system is *correct*

Is it correct?

THE PREDOMINANT APPROACH · VERIFICATION

Compare the system's outputs to a standard fixed in advance. The logic IS audit inherited from financial audit.

Was reliance justified?

THE ALTERNATIVE · DEFENSIBILITY

Examine the organization's judgment to depend on the system, given the evidence, the uncertainty, the people responsible, and the stakes.

Verification rests on four requirements

VERIFICATION

Assertions

that can be true or false

Evidence

that confirms or disconfirms them

Determinate states

a subject matter with facts to compare against

Criteria

established in advance

Committee on Basic Auditing Concepts (Silvoso, 1972) · Power (1997) · Kroll et al. (2017), Raji et al. (2020), NIST AI RMF (2023), EU AI Act (2024)

A post is not a ledger entry

"Clean the cockroaches."

Translated from Amharic. Posted during the Tigray war, 2020 to 2022.

ANNOTATOR 1

Remove

Dehumanizing term for Tigrayans in this dialect

ANNOTATOR 2

Keep

Idiom. No target named. Could be about pests.

ANNOTATOR 3

Remove

Context: posted in a militia group

ANNOTATOR 4

Unsure

Depends who is reading and when

GROUND TRUTH = whichever of these the labeler happened to be

Epistemic indeterminacy There is no answer, fixed independently of the context of use, against which the adequacy of an output can be checked.

DAIR Institute study of moderation during the Tigray war (2025) · Lebovitz, Levina & Lifshitz-Assaf, MISQ (2021) · Goodman et al., JAMA (2024)

Two common responses

Measure it

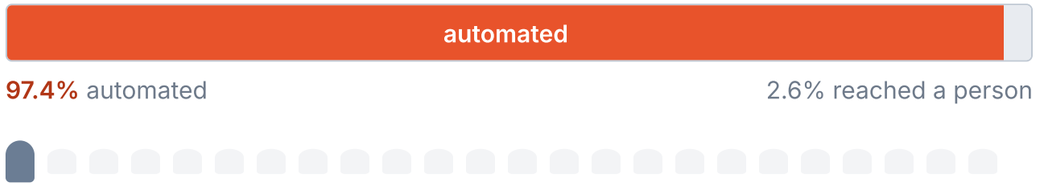
"Our LLMs make 13% fewer errors than human reviewers."



Fewer errors measured against what? Against the human labels. The contested thing is the yardstick.

Wait for it to improve

97.4% of hate-speech removals on Instagram were automated in Q1 2025.



The better the system, the fewer humans ever see the rare failure in the rare language. Showing a 1-in-1,000 error rate takes about 3,000 clean cases.

Financial Times reporting on Meta's LLM moderation (2026) · Meta Q1 2025 Integrity Report via Wired · Kalra & Paddock (2016) · Bainbridge (1983) · Parasuraman & Manzey (2010)

What verification produces when it cannot verify

Ritual of verification

POWER, 1997

Audit the judgment to rely, not the output

THE AUDIT OBJECT, TODAY

The post

Remove or keep?

THE AUDIT OBJECT, PROPOSED

The decision to rely

on automated detection, at full scale, in Amharic, during a civil war

Evidence
What did they know?

Actors
Who can answer for it?

Threshold
How sure did they have to be?

"One may regard 'defensibility' as a weak standard... But it is probably the strictest standard we can generally satisfy with real-world problems of this complexity."

Herbert Simon, 1996

Simon, The Sciences of the Artificial (1996, p. 146) · Toulmin (2003) · Rudner (1953) · Douglas (2009) · Bovens (2007)

CONDITION 1

Evidential sufficiency

RELIANCE ON AUTOMATED DETECTION · FULL SCALE · UNCHANGED

JUN 2020

Internal audit

"Significant gaps in our coverage (especially in Myanmar & Ethiopia) … our current signals may be inadequate." No classifier for Amharic or Oromo.

NOV 2020

War begins

Tigray conflict starts. Reliance on automated detection continues at full scale.

MAR 2021

Internal report

Headline in bold: "Current mitigation strategies are not enough."

2021

Internal roadmap

Ethiopia rated in "dire" risk of violence. Own capacity rated 0 out of 3.

Relevant to this deployment	YES
Read in light of its limits	YES
Affected the decision	NO

Facebook Files via CNN and WSJ, Oct 2021 · Wired, Dec 2022 (Kenyan lawsuit filings) · Council on Foreign Relations, 2022

CONDITION 2

Epistemic answerability



OVERSIGHT BOARD, DEC 2021

Recommended an independent human-rights assessment of Meta's role in Ethiopia

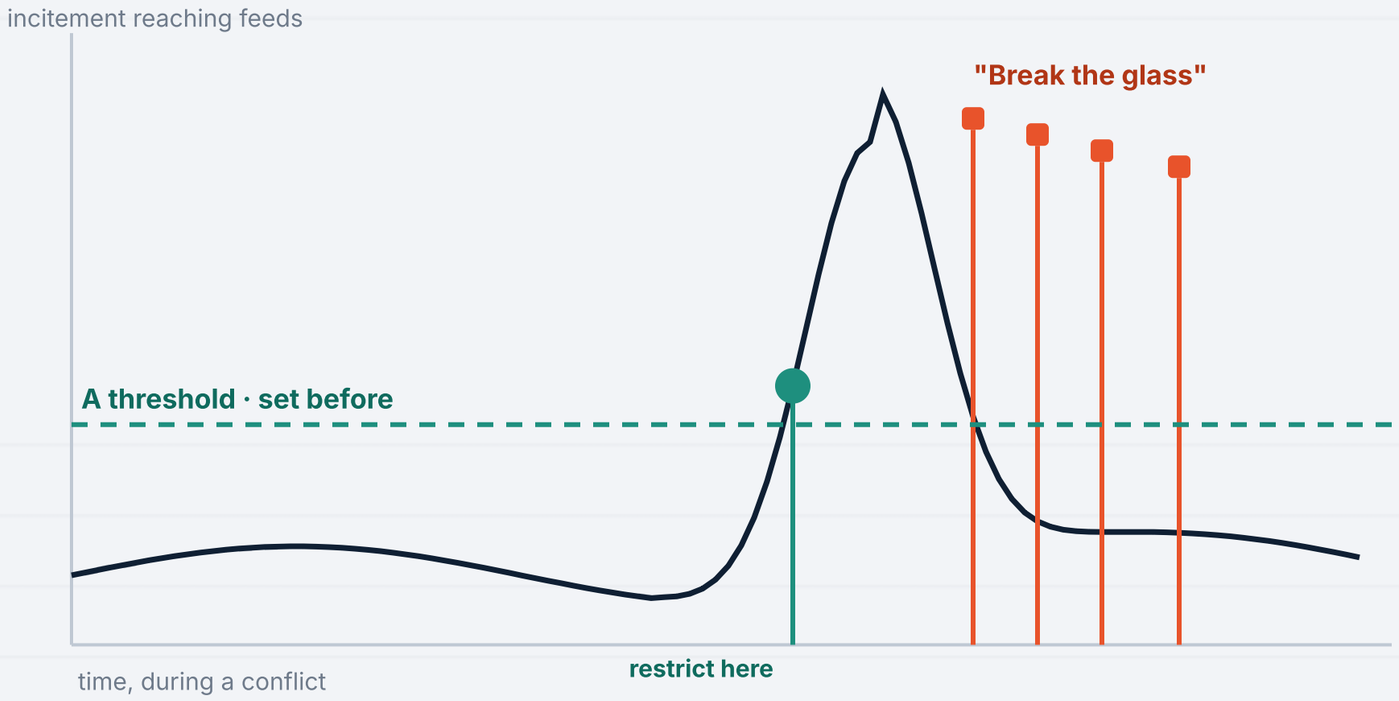
META, JAN 2022

Would "assess the feasibility" of commissioning one

Oversight Board decision 2021-014-FB-UA · Reuters, Jan 2022 · Nissenbaum (1996) · Bovens (2007) · Lerner & Tetlock (1999)

CONDITION 3

Proportional threshold



"Break the glass"

Dozens of enforcement levers pulled during exceptionally inciteful events

A threshold

Conditions for restricting virality in a country at war, fixed before the spike, with a named group authorized to pull them

January 2025: Meta publicly raised confidence thresholds and tiered automated enforcement by severity. Whatever one thinks of the policy, that is a threshold stated in advance. Whether the tiers fit the stakes is exactly what a forum should examine.

Wired, Dec 2022 (internal "break the glass" documents) · Meta, Jan 7 2025 · Bernoulli (1713) · Douglas (2009)

Three parts of one justification



Incomplete is a different defect from **weak**.

Non-compensatory. Not a scorecard that sums across dimensions.

Defensible does not mean **safe**.

The finding concerns the decision, on what was knowable when it was made.

What would have changed?

VERIFICATION AUDIT · MID-2020

- Proactive detection rate high
- Community Standards translated into Amharic and Oromo
- Ethiopia assigned to the highest risk tier
- Transparency reports filed on schedule

CONFORMS · MID-2020

CONFORMS · NOV 2021

DEFENSIBILITY AUDIT · MID-2020

- Evidence fit the deployment and was ignored
- No one positioned to answer for the whole
- No threshold before the spike, only levers after

INDEFENSIBLE · MID-2020

INDEFENSIBLE · NOV 2021

WHAT DEFENSIBLE RELIANCE WOULD HAVE REQUIRED

- Demonstrate classifier performance in the four languages before relying at scale
- Name a group with authority to restrict virality in the country
- Fix the restriction conditions before the conflict, not during it

Amnesty International, "A death sentence for my father," Oct 2023 · Wired, Dec 2022 · Facebook Files, Oct 2021

The judgment is being made again



AND THE RISK REVIEW ITSELF

instant decision

Up to 90% of Meta's own product risk assessments to be automated. Product teams fill in a questionnaire and receive an "instant decision." Areas include AI safety, youth risk, and integrity.

Proposition 2. As reliability rises, the evidence needed to verify grows and human scrutiny falls, so the justification for reliance needs more support, not less.

Financial Times, 2026 · NPR, "Meta plans to replace humans with AI to assess privacy and societal risks," May 31 2025

IMPLICATIONS

The forum, and what it should ask

Oversight Board

TODAY

Judges individual posts

COULD ASK

Was the evidence fit for this deployment, and did it change the decision?

European Commission

TODAY

Judges compliance with the statute

COULD ASK

Who can account for the whole judgment, and what would have changed it?

Courts

TODAY

Judge the harm, afterward

COULD ASK

Was the threshold set before the results, and did it match the stakes?

Not a guarantee of safety or correctness

Not a replacement for technical evaluation or compliance

Not a theory of whether the platform should exist at all

When the truth cannot be established, the burden shifts to those who act. They must be able to show why relying on the system was justified.

ckormylo@nd.edu · Slides at ckormylo.github.io/burden-of-truth